



PROFESSIONAL SERVICES AGREEMENT NUMBER 3

THIS AGREEMENT is made and entered into this day August 19, 2026, by and between Hussey, Gay, Bell & Deyoung, Inc., a GA Inc., hereinafter called the "Consultant", and Place Services Inc., hereinafter called the "Client". Consultant and Client are referred to individually as "Party" and collectively as "Parties".

RECITALS

WHEREAS, Client, at times, may have need of certain professional Services ("Services") performed benefiting only Client, or the Services may be based upon and needed to support LiDL, hereinafter called "Customer", with whom Client has an agreement (herein after called the "Main Contract") to perform certain Services in accordance with the plans and specifications dated 01/16/2026 including Addenda 0 and prepared by Progressive Companies hereinafter called the "Architect", for the Norcross, GA 1517 Lidl - Ground Up project located at Norcross, GA, (herein after called the "Project"); and,

WHEREAS, Client desires Consultant to perform certain Services; and,

WHEREAS, Consultant, at times, may desire to perform said Services.

AGREEMENT

NOW THEREFORE, in consideration of the mutual duties and responsibilities to one another as set forth within and other good and valuable consideration the receipt and sufficiency of which is hereby acknowledged, the Parties agree to be legally bound as follows:

1.0 SCOPE OF SERVICES

Consultant shall perform the Services consistent with sound professional practice according to the contract documents and requirements, described in EXHIBIT "A" and, if applicable, as described in the Main Contract.

2.0 AGREEMENT AMOUNT

The Client agrees to pay the Consultant for the performance of the Services the firm fixed lump sum of Twenty One Thousand Two Hundred Dollars and No Cents (\$21,200.00) according to the schedule of values described in EXHIBIT "B".

3.0 SCHEDULE

Consultant shall perform the Services in accordance with the requirements of the schedule in EXHIBIT "C" and all revisions and updates thereto. Client has full discretion regarding preparation of the schedule and all revisions and updates to the schedule and each issued schedule shall be a Contract Document.

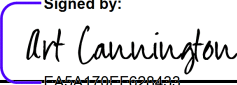
4.0 GENERAL CONDITIONS

The Parties agree and acknowledge that the duties and obligations of both Parties as well as the Services to be performed under this Agreement are subject to the General Conditions presented in EXHIBIT "D". The Parties agree that the General Conditions are part of the Contract Documents and this Agreement.

IN WITNESS WHEREOF, the Parties to this Agreement have executed this Agreement as of the Effective Date set forth above.

CONSULTANT

HUSSEY, GAY, BELL & DEYOUNG, INC.

Signature: 
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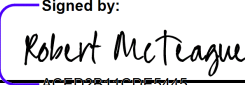
Name: Art Cannington

Title: Survey Department Head - Atlanta

Date: 8/19/2026

CLIENT

PLACE SERVICES, INC.

Signature: 
ACED2B11CDE3445...

Name: Robert McTeague

Title: Project Manager

Date: 8/19/2026

EXHIBIT "A"

SCOPE OF WORK

- All work per plans and specs associated with 003410 - Layout & Data
 - Limits of Disturbance Staking: Provide surveying services for layout and staking of project limits of disturbance, including installation of control points and staking at approximately 50-foot intervals and grade breaks as required.
- Underground Detention System Staking: Provide layout and staking for underground detention facilities, including system alignment, structure locations, and control points required for installation.
- Rough Grading Layout & Staking: Provide survey control and staking for rough grading operations, including grading limits, slope transitions, and spot grade control points as required for earthwork activities.
- Storm Drainage Layout & Staking: Provide staking and layout services for storm drainage infrastructure, including pipe alignments, invert locations, and structure locations with two offset stakes per structure.
- Sanitary Sewer Layout & Staking: Provide staking and layout services for sanitary sewer improvements, including pipe alignments, manhole locations, and associated control points required for installation.
- Domestic Water System Layout & Staking: Provide staking and layout services for domestic water mains, valves, hydrants, fittings, and associated appurtenances, including line staking at specified intervals and structure locations.
- Back of Curb Layout & Staking: Provide layout and staking for curb and gutter installation, including tangent alignment, radius points, curb returns, and control points at required intervals.
- Site Lighting Layout & Staking: Provide survey layout and staking for site lighting improvements, including light pole foundation locations and installation control points.
- Building Corner & Envelope Layout: Provide building control layout including establishment of building corners, envelope offsets, and reference staking necessary for building placement and construction.
- Survey Control & Construction Layout Coordination: Establish and maintain horizontal and vertical survey control necessary to support all construction staking activities included within the project scope.
- Record Drawing / As-Built Field Survey: Perform field survey of completed site improvements, including collection of horizontal and vertical location data for storm drainage, sanitary sewer, water systems, paving, curb, detention facilities, and other visible improvements.
- As-Built Drawing Preparation: Prepare project record drawings utilizing field-collected as-built information and contractor markups for incorporation into final record documents.
- Professional Land Surveyor Review & Certification: Review and certify final as-built drawings by a Georgia licensed Professional Land Surveyor in accordance with project requirements.
- Final Project Closeout Survey Documentation: Provide final survey deliverables, electronic files, certifications, and record documentation required for project closeout.

EXHIBIT "B"

SCHEDULE OF VALUES

SCHEDULE OF VALUES					
<u>Task</u>	<u>Cost Code</u>	<u>Acct Group</u>	<u>Description</u>	<u>%</u>	<u>Amount</u>
001	003410	PROFSERV	Layout & Data	100	21,200.00

EXHIBIT "C"

SCHEDULE

- Project Start Date: August 24, 2026
- Project End Date: June 18, 2027

Client shall perform the Services in accordance with the requirements of the Schedule most recently issued by the Client's Project Manager. Consultant will provide adequate labor to meet the Client's schedule for the SCOPE OF WORK per the project milestones described in the Project Manager's most recently issued Schedule document.

EXHIBIT "D"**GENERAL CONDITIONS****Article 1 SCOPE OF WORK**

Consultant shall perform the Services consistent with sound professional practice according to the contract documents and requirements, as applicable. The Services will comply with all applicable federal, state and local codes and regulations and performed in accordance with all applicable safety rules and regulations that may apply to the conditions or as may arise during the performance of the Services. Provided Consultant is timely paid all fees due and owing under this Agreement, the Services shall be delivered free from all liens or claims of laborers, materialmen, suppliers or sub-consultants.

Consultant shall be solely responsible for all means, methods, techniques and procedures and for coordinating all portions of the Services. Consultant shall cooperate with Client to ensure that the Services is performed in a timely and efficient manner and in conformity with the Client's requirements. Consultant shall plan, organize, record and report on the Services in such a manner as Client may from time to time direct.

Consultant agrees that it has had access to, carefully examined and understands the Contract Documents as they are relevant to the Services. Consultant has notified Client in writing of all ambiguities, inconsistencies and omissions, if any, in the Contract Documents that relate to the Services. Consultant agrees it has adequately investigated the site and is familiar with the conditions and difficulty of the Services and enters into this Agreement based upon its own examination and evaluation and not on any representations of the Client. Consultant shall be liable for any added costs or damage resulting from its performance of any Services involving an error, inconsistency, omission or ambiguity in the Contract Documents not reported to the Client prior to execution of the Agreement. Consultant acknowledges, agrees and warrants that it shall confirm or develop all information used in its Services unless such information is specifically identified as supplied by others and relied upon as such.

Consultant shall not subcontract any portion of the Services without prior written approval from Client.

Article 2 CONTRACT DOCUMENTS

The Contract Documents consist of this Agreement, the Main Contract if applicable, and other documents within to the extent applicable to the subject Services, and any modifications and changes to the above, and any other documents as identified as applicable to the the subject Services. If the Main Contract requires the Client to incorporate certain specific provisions or requirements in the subcontract agreements, Consultant agrees that all of those provisions or requirements are incorporated into this Agreement. With respect to the Services, the rights and obligations of Consultant to the Client are identical to the rights and obligations of the Client to its Customer. Consultant assumes and agrees to perform all the obligations and responsibilities of Client under the Main Contract in relation to the Services and to carry out the same in every respect to the reasonable satisfaction of Client and Customer.

Article 3 PERFORMANCE OF THE WORK

Consultant acknowledges that its Services may be performed in an active construction site which necessarily requires accommodation of temporary inconveniences, interferences, inefficiencies, coordination and resequencing whenever and however such may arise, all being

within Consultant's base scope and Services without claiming additional time or compensation. Client will provide or obtain access to the work site for the performance of the Services by Consultant.

Consultant shall at all times employ sufficient labor and equipment for prosecuting the Services to full completion in the manner and time required. If Consultant fails to employ sufficient labor and equipment, Client may, at its sole option and discretion, (a) direct Consultant to take necessary actions to improve the rate of progress, including increasing labor force, shifts, overtime, days of Services and/or additional equipment or materials; (b) supplement labor and/or equipment and in the event of a fixed price, back charge Consultant the costs thereof; or (c) descope Consultant's right to proceed with all or part of the Services with 48 hours written notice.

Client may, at any time, stop or suspend any or all portions of the Services. Upon notification of a suspension or stoppage, Consultant shall immediately take such measures necessary to protect the Services, material and equipment. Client shall compensate Consultant for additional costs incurred due to the suspension or stoppage in accordance with Article 5 "CHANGE ORDERS" unless the suspension or stoppage was caused or contributed to by the Consultant.

During any and all disputes or disagreements with the Client or other Project participants, Consultant shall carry on the Services and adhere to the Project Schedule.

Article 4 STANDARD OF CARE

The Consultant warrants that it is possessed of that degree of care, learning, skill, and ability which is ordinarily possessed by other members of its profession and further warrants that in the performance of the duties herein set forth will exercise such degree of care, learning, skill, and ability as is ordinarily employed by professionals providing similar services under similar conditions and like circumstances in a similar vicinity and shall perform such duties without neglect, and shall not be liable except for the failure to exercise such degree of care, learning, skill, and ability or as is otherwise set forth within this Agreement.

Article 5 CHANGE ORDERS

Consultant shall have no claim for additional compensation beyond a fixed price amount or any change in unit rates unless it has provided a request for a change and obtained written approval from an authorized agent of the change from Client before the Services is performed (a "Change Order"). Any extra Services performed without procedure shall be at Consultant's sole expense. Consultant agrees to price all Change Requests within two (2) days of receipt unless required otherwise by the Client. Consultant agrees to provide detailed breakdowns of all associated costs and estimates as may be required by Client. If Consultant fails to provide pricing within the two (2) day period, Client at its option, shall determine the pricing which shall then become binding upon the Consultant. Mark-up of all Change Requests shall not exceed 10% overhead and profit. If the Main Contract allows a greater or lesser percentage of overhead and profit, the specifications shall be binding upon the Consultant. The Parties covenant and agree that they will not offer or attempt to offer parol evidence to vary the terms hereof and that such evidence shall not be admissible for any purpose whatsoever.

Client's project superintendent shall not have the authority to order, approve, or accept any alterations of any kind to the Services as

shown or contemplated in the Contract Documents and Consultant shall have no claim for any additional Services, time or changes unless such has been ordered, approved or accepted pursuant to a written authorized agent of Client.

Article 6 PAYMENT

Consultant's application for payment shall be on a form approved by Client and shall be delivered to Client by the 20th of any month during which Consultant requests payment. The application for payment shall be based upon the schedule of values in the Agreement. If the application for payment is not received by the 20th, it will be processed in the next billing cycle. As a condition of payment, Client may require lien waivers from Consultant and its major suppliers and/or all affidavits that all bills have been paid for Services performed and materials supplied through the date of the last payment by Client.

Subject to payment conditions stated herein, Client shall make payment within thirty (30) days of receiving an approved application for payment. Client shall make payment to Consultant less (a) retainage not exceeding ten (10) percent, (b) any other reserve or withholding permitted in this Agreement, and (c) any charges or back-charges for services, material and equipment and other items furnished by Client and chargeable to Consultant.

The balance of the Agreement amount shall be paid to the Consultant upon all of the following occurring:

- a) Final completion of Consultant's Services and obligations under this Agreement;
- b) Acceptance of the Services by the Customer and/or the Customer's agent, such as the Architect;
- c) Consultant furnishing to Client satisfactory evidence that all labor and material accounts incurred by Consultant in connection with his Services have been paid in full; and
- d) Consultant furnishing all documents, reports, and other items, as required to the Client.

No payment to Consultant shall operate as an approval of Consultant's Services, or materials, or any part thereof, or a waiver of any obligation of Consultant with respect to Consultant's warranty or duty or other responsibilities of Consultant under this Agreement. If the Services are provided pursuant to the Customer's needs and require acceptance of the Customer, Consultant expressly acknowledges that payment to Client by Customer is a condition precedent to Client's duty to pay Consultant.

Client's duty to pay is subject to any set-off or other rights of Client under this Agreement. Client may withhold from any progress or final payment all amounts that are reasonably necessary to protect Client against any or all risks.

Consultant agrees and covenants that money received for the performance of the Services shall be used solely for the benefit of the persons or firms supplying labor, materials, supplies, tools, machines, equipment, and / or services exclusively for the Services or the Project and having the right to assert liens or claims against the land or improvements involved in the Services, or against any bond or security posted by Client, or in any way against the Project. Any money paid to Consultant pursuant to this Agreement shall immediately become and constitute a trust fund for the benefit of said persons and firms, and shall not in any instance be directed by Consultant to any other purpose, until all obligations arising hereunder have been fully discharged, all claims fully paid, and all final lien waivers obtained and delivered to Client. Consultant agrees to furnish Client such partial or final releases of claims or waivers of lien as Client may request, if required. Client at its sole option may issue joint checks.

Article 12 TERMINATION

Termination for Default

Article 7 TAXES, PERMITS and APPROVALS

Consultant will pay all FICA, unemployment, social security and other employment taxes imposed upon it as an employer in connection with the performance of the Services and will furnish evidence, if requested by Client, showing that all such payments required to be made have been paid. Consultant shall pay all local, state and federal taxes or assessments in connection with the Services. Consultant shall provide Client with all required employee eligibility verification as required.

Article 8 WITHHOLDING

In addition to retainage, payments or portions thereof otherwise due Consultant may be, but are not required to be, withheld by Client (i) when claims are filed or made against the Project or Client arising out of Consultant's performance of this Agreement or when reasonable evidence indicates the probability of the filing of such claims, including liens, (ii) upon failure of Consultant to make timely payments for any material or labor, or (iii) when Consultant causes damage or losses to the Project or Client, or Consultant otherwise fails to perform its obligations under this Agreement.

If said causes are not removed or, in Client's sole opinion, adequate corrective action is not taken by Consultant after forty-eight (48) hours written notice from Client to Consultant, Client may rectify the same at Consultant's expense and recover such amount from Consultant from monies previously withheld, monies due or to become due under this Agreement.

Article 9 LIENS

Provided Consultant is timely paid all fees due and owing under this Agreement, Consultant will save and keep the Project, building and property and the lands upon which they are situated free from all mechanic's liens and other liens or claims against any payment bonds by reason of Consultant's Services or of any materials, labor, or other things used herein. If Consultant fails to remove any lien or claim by bonding it or otherwise discharging said lien, after forty-eight (48) hours written notice by Client, Client may, in addition to all other rights and remedies available to Client, elect to pay the same and all costs (legal or otherwise) incurred by reason thereof, and may pay said lien or liens and costs out of any funds retained or withheld at any time in the hands of Client owing to Consultant. Client has the right to recover from Consultant a reimbursement for all costs incurred in removing any liens or claim in excess to the amounts due Consultant.

Article 10 WARRANTY

Consultant warrants and guarantees that it shall perform all Services within the Standard of Care and in conformity with all applicable laws, building codes, plans and specifications, and manufacturer's standards and recommendations. Should Client require it, Consultant shall prepare and furnish copies of daily reports reflecting manpower and Services performed each day.

Consultant agrees to promptly make good any Services or material which does not meet the obligations of this Agreement or Contract Documents. Consultant agrees to perform the Services under this Agreement in such a manner that it will protect and not injure or damage any other work performed by Client or any other contractor and further agrees to pay Client for any damage that may be caused to such other work by Consultant.

Article 11 NOTICES

All written notices provided for in this Agreement shall be deemed given if delivered in writing personally to a representative of the party or if sent by email or by regular mail to the party at its address herein or to the surety of the party named herein. Only one such notice shall be required, and any notice given in the manner herein described shall be deemed continuous.

deducted from sums otherwise payable to Consultant. If the notice, from Client or regulatory body, of noncompliance, the Client may take necessary action to enforce the requirements including implementing

If in the opinion of Client, the Consultant (a) fails to provide sufficient properly skilled professionals and / or technicians; (b) fails to prosecute the Services according to schedule; (c) fails to comply with this Agreement or the Contract Documents; (e) makes a general assignment for the benefit of creditors; (f) has a receiver appointed; or (g) becomes insolvent, then, if Consultant fails to cure such condition within 48 hours of a written notice by Client, Client may, at its option, take steps it deems necessary to overcome the condition without voiding any other provisions of this Agreement and without notice to the sureties and in addition to all other remedies available under the contract or law. The steps Client may take include (i) supplement forces or correct deficiencies in which case Consultant is liable to Client for the cost thereof plus ten percent (10%) overhead; or (ii) terminate Consultant for default on all or part of the Services.

In the event of a termination for default, Consultant is not entitled to any further payment for the defaulted Services until such Services is completed and accepted by the Client and / or Customer and then when payment in full is made by the Customer.

Any termination for default under this section that is deemed improper shall be deemed to be a termination for convenience and Consultant's recovery shall be limited to the amounts provided as such.

Termination for Convenience

Client may at any time after the commencement of the Services terminate the Services or a portion thereof for convenience for any reason whatsoever or no reason at all by sending Consultant a 48 hour written notice of such termination. Upon receipt of such notice, Consultant shall stop Services immediately. In the event of such termination, Client shall only be liable to Consultant for the amount due to Consultant for the Services completed in accordance with Article 6 "PAYMENT" and proven demobilization. Client shall not be liable to the Consultant for any anticipated profit or overhead on the uncompleted portion of the Services or for any other damage whatsoever.

Termination for Nonpayment

Consultant may terminate this Agreement for failure of Client to make payment as required within, provided Consultant provides a 48 hour written notice to cure following the failure to pay. For clarity, any right of withholding or set-off by Client against any payment shall not be construed as a failure to pay.

Article 13 SAFETY AND CONDUCT

Safety is of critical importance to Client; therefore, Consultant shall initiate, maintain and supervise all safety precautions with respect to the Services and shall oversee all such safety precautions. Consultant shall take all necessary and reasonable precautions for the safety of all its employees. Consultant shall comply with all applicable laws, ordinances, rules, regulations, and orders of any government agency or public authority for the safety of persons or property and all other laws, ordinances, rules, OSHA rules, ADA requirements, regulations, and orders affecting the Services or the Project. If there are conflicting standards for safety, Consultant shall always follow the more stringent standard. Consultant shall attend all safety meetings and shall coordinate its activities with those of the Client and other Consultants to ensure that it maintains a safe environment. Consultant ACKNOWLEDGES THAT THE OBLIGATION TO ENSURE A SAFE WORKING ENVIRONMENT FOR ITS EMPLOYEES AND THOSE WORKING AROUND ITS EMPLOYEES IS SOLELY THAT OF CONSULTANT. In the event that Client is cited by OSHA for a violation created and/or controlled by Consultant, the cost of defending such citations and any penalties thereunder shall be by Consultant or anyone directly or indirectly employed, contracted or supervised by Consultant or anyone for whose acts Consultant may be liable. This indemnification shall only be applicable to the conduct attributable to Consultant or anyone directly or indirectly employed, contracted or supervised by Consultant or by anyone whose acts Consultant may be liable. Consultant acknowledges that Client shall

corrective measures without further notice deducting such costs for any amounts due to or to become due to Consultant or removing employee or equipment in violation from the job site. Consultant shall follow Client's site specific rules and regulations. Consultant is not responsible for the safety programs of any other party.

The Consultant is an independent contractor for the Services provided under this Agreement. This Agreement shall not be interpreted or construed to create an association, agency, joint venture or partnership between the Parties or to impose any liability attributable to such a relationship upon either Party.

The Client may require that specific individual(s) of the Consultant be immediately removed from the Services due to performance, unsafe activities, disruption, failure to maintain harmony, discrimination, harassment or any other reason as determined in Client's sole discretion.

The Consultant will remove all debris, cartons, crates, and boxes at the end of each day and at all times keep the area and premises free from debris and unsafe conditions resulting from the Consultant's Services. Consultant shall submit to the Client one copy of Material Data Sheets (MSDS) for the Services, all in accordance with State and Federal Occupational Safety and Health Administrations as required by the Contract Documents.

Article 14 TIME IS OF THE ESSENCE

Time is of the essence of this Agreement and any breach of same shall go to the essence thereof. Consultant shall be entitled to an extension of time to complete the Services under this Subcontract only if all of the following are satisfied: (i) delays to its Services are caused by actions of Client, Customer or others and are beyond the control of Consultant, (ii) the delays were not reasonably foreseeable before the Agreement was entered, (iii) Consultant provides written notice to Client within forty-eight (48) hours of the first commencement of any delay describing the delay, impact and when delay commenced, and (iv) Client can and has been awarded a time extension for such delay by the Customer, if the Services are derived from the Main Contract.

In the event of a fixed price Agreement, no time extension or damages may be recovered by Consultant for weekend or overtime Services. Consultant EXPRESSLY AGREES THAT NO DAMAGES SHALL BE RECOVERABLE FOR ANY DELAYS IN THE SERVICES, REGARDLESS OF THE CAUSE; THE SOLE REMEDY IS AN EXTENSION OF TIME. Notwithstanding the foregoing, Consultant shall not be entitled to any extension if Client has not been awarded a similar extension of time by the Customer, if the Services are derived from the Main Contract.

Article 15 MERGER

All negotiations and agreements prior to the date of this Agreement not included herein are hereby voided. Consultant warrants that the entire agreement between Consultant and Client for the Services is set forth in this Agreement. This Agreement may be amended or modified only by a written instrument signed by both Parties hereto.

Article 16 INDEMNIFICATION

Consultant agrees to defend, indemnify and hold harmless Client and the Customer and their officers, agents, and employees for any damages, losses, expenses, penalties, attorney fees, costs, claims, causes of action, demands and judgments to the extent arising from (a) Consultant's negligent performance of the Services (b) a violation of any provision of this Agreement, or (c) by any act or failure to act contrary to any law, order, citation, rule, regulation, standard or statute whether

Article 19 WAIVER

No waiver or breach or default of any provision under this Agreement by either Party shall constitute a waiver of any other breach or default of the same or any other provision at any time.

have no obligation to supervise Consultant's Services, and if anyone brings suit resulting from conduct of Consultant, Consultant will indemnify Client for Client's losses, damages, costs, and legal fees, and from claim of Client's own negligence in supervising Consultant.

Article 17 INSURANCE

Prior to commencing Services, Consultant shall procure and thereafter maintain, at its own cost, until one year following final completion of the Services or other such time as required by the Main Contract (if applicable), insurance in the form and amounts and from insurers acceptable to Client. Any insurer shall be licensed and authorized to offer such insurance in the state where the Services is performed and have AM Best rating of "A-" or better. Unless Main Contract applies and provides differently, Consultant shall maintain minimum coverage as follows:

- a) Commercial General Liability (CGL) Insurance with a per occurrence limit of not less than \$1,000,000 and a general aggregate limit of not less than \$2,000,000.
- b) Business Automobile Liability Insurance combined single limit not less than \$500,000 each accident.
- c) Workers Compensation Insurance with benefits as required by law in the jurisdiction where the Services are performed.
- d) Commercial Umbrella Insurance with a per occurrence limit of not less than \$1,000,000 and a general aggregate limit of not less than \$1,000,000.00
- e) Professional Liability Insurance with a per occurrence limit of not less than \$1,000,000 and a general aggregate limit of not less than \$2,000,000.00

Consultant shall furnish a Certificate of Insurance to Client. This insurance shall be primary and shall name Client as an additional insured, and Customer shall be named as an additional insured if required through the Main Contract. This Certificate of Insurance must be returned with the signed Agreement, and must provide a thirty (30) day cancellation notice, with notice to Client by Consultant and the insurer. Should Consultant fail or neglect to provide said insurance required by this Section, Client shall have the right, but not the obligation, to pay the premiums to maintain said insurance and offset such cost against Consultant, but failure of Client to exercise such right shall not affect or diminish the obligations of Consultant under this Subcontract. Client also has the right to recover from Consultant a reimbursement for any premiums paid by Client in excess of amounts due Consultant.

Consultant waives the right of subrogation against Client and / or Customer for any loss covered by insurance of any type.

Article 18 SEVERABILITY

In the event any one or more of the provisions of this Agreement, or any instrument executed and delivered hereunder or pursuant hereto, shall be held to be invalid, illegal or unenforceable in any respect or as to any person or party by any court or in any arbitration proceeding, the validity, legality and enforceability of the remaining provisions of the Agreement or of any other instrument executed and delivered hereunder or pursuant hereto, and as to all other persons and parties shall not be affected or impaired thereby.

Article 20 CONSEQUENTIAL DAMAGES

In no event shall either party be liable to the other party in contract, tort, (including negligence or breach of statutory duty) or otherwise, for any special, indirect, consequential, incidental, exemplary or punitive damages under any legal theory of any nature whatsoever, including but not limited to loss of revenue, loss of profit, loss of bonding capacity and loss of business reputation. Nothing in this section shall be deemed to preclude the application of liquidated damages in accordance with the requirements of this Agreement.

Article 21 GOVERNING LAW

This Agreement shall be governed by and interpreted in accordance with the substantive laws of the state of Georgia. Notwithstanding the foregoing, if the contract between Customer and Client provides that the laws of another state govern, and if Customer is joined as part of any dispute between Client and Consultant, then the laws of the State so provided for in the contract between Customer and Client shall govern this Agreement.

Article 22 DISPUTES

If any claim or dispute shall arise under or related to this Agreement and cannot be settled first through executive negotiation, then prior to litigation, Consultant and Client agree to then try in good faith to settle the dispute by mediation. The mediation shall be considered non-binding and shall consist of a single mediator agreed upon by both Consultant and Client. Each party shall pay one-half of the expense of the Mediation.

If the claim or dispute is not settled through mediation, then prior to litigation or at any time during litigation, either Party can demand arbitration which shall be binding upon the Parties. If so demanded, arbitration shall be by one Arbitrator agreed to by the Parties in accordance with the AAA rules unless otherwise agreed to by the Parties. Each party shall pay one-half of the expense of Arbitration. The parties hereby acknowledge that this Agreement involved interstate commerce and that the agreement to arbitrate any claims or disputes arising under, from or in connection with this Agreement or the Services, may be specifically enforced pursuant to the provisions of and subject to the Federal Arbitration Act which shall supersede any state or local law to the contrary.

Consultant consents to the joinder of any dispute that exists with Client into any pending dispute between Customer and Client, if the subject Services are based on the Customer's Main Contract. Notwithstanding anything to the foregoing, if Customer's contract with Client does not permit arbitration, the arbitration provision may be voided and the claims between Consultant and Client joined into any litigation with Customer.

Article 23 LEGAL FEES

The prevailing party in any litigation proceeding between the parties shall be entitled to an award of attorney fees and court costs against the other party, in addition to the principle amount of damages awarded.

Article 24 ASSIGNMENT

The Consultant shall not assign, directly or indirectly, by power of attorney or otherwise, its obligations, the whole or any part of the Services or any of the monies at any time payable under this Agreement without advance written permission of Client.



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)
2/10/2016

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Insurance Agency USA 123 Insurance Ave Home Town US 12345 INSURED Insured's Name Here Insured's Address here	CONTACT NAME: Insurance Contact PHONE: Contact Phone FAX: Insurance Fax (A/C No. Ext): EMAIL: insurance@insuranceagency.com ADDRESS: INSURER(S) AFFORDING COVERAGE NAIC # INSURER A: AM Best Rating of A- or better INSURER B: INSURER C: INSURER D: INSURER E: INSURER F:
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COVERAGES **CERTIFICATE NUMBER: 2016-17 Vendor Sample** **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL SUB INSD WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
☒	COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR ☒ Broad Form PD ☒ Contractual & XCU GEN'L AGGREGATE LIMIT APPLIES PER: ☐ POLICY ☒ PRO-JECT ☐ LOC OTHER:	X	Y	Policy number	Eff Date	Eff Date	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 500,000 MED EXP (Any one person) \$ 5,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMP/OP AGG \$ 2,000,000
☒	AUTOMOBILE LIABILITY ☒ ANY AUTO ☐ ALL OWNED AUTOS ☐ SCHEDULED AUTOS ☐ HIRED AUTOS ☐ NON OWNED AUTOS	X	Y	Policy number	Eff Date	Eff Date	COMBINED SINGLE LIMIT (Ea accident) \$ 1,000,000 BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$
☒	UMBRELLA LIAB ☒ OCCUR EXCESS LIAB ☐ CLAIMS-MADE DED RETENTION \$	X		Policy number	Eff Date	Eff Date	EACH OCCURRENCE \$ 2,000,000 AGGREGATE \$ 2,000,000 \$
☒	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y/N	N/A	Policy number	Eff Date	Eff Date	☒ PER STATUTE ☐ OTHER AGGREGATE \$ 1,000,000 AGGREGATE \$ 1,000,000 AGGREGATE \$ 1,000,000
				Policy number	Eff Date	Eff Date	

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

Project Name and Location Address

G 00 01 04 13 - Contractual Liability; 421-2915 12 14 - General Liability blanket additional insured, blanket waiver of subrogation, and primary and non-contributory coverage: CG 2037 Additional Insured; 461-0155 - Auto blanket waiver of subrogation; 461-0478 12 12 - Auto blanket additional insured and primary and non contributory coverage: WC 00 03 13 - Workers Comp blanket waiver of subrogation: 475-001 01 18 Umbrella following form

CERTIFICATE HOLDER

CANCELLATION

Place Services, Inc 95 Hickory Springs Industrial Drive Canton, GA 30115	SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS. AUTHORIZED REPRESENTATIVE
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ACORD 25 (2014/01)

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